

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

JUAN VASQUEZ,

Plaintiff,

Index No. :

Purchased: ____/____/18

- against -

SUMMONS

**THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER BRITTNEY SAXON (Shield No. 01707),
and POLICE OFFICER JANE DOE,**

Defendants.

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the incident arose

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Astoria, New York
November 17, 2018

Very truly yours,

WESLEY MEAD, ESQ.

Attorney for Plaintiff

JUAN VASQUEZ

The Mead Law Firm, P.C.

20-77 Steinway Street, Suite SL

Astoria, NY 11105

Tel. 866-306-5547

TO: Defendants' Addresses:

ZACHARY W. CARTER, ESQ.

Corporation Counsel of the

City of New York

100 Church Street

New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

One Police Plaza

New York, NY 10038

POLICE OFFICER BRITTNEY SAXON (Shield No. 01707)

New York City Police Department

One Police Plaza

New York, NY 10038

POLICE OFFICER JANE DOE

New York City Police Department

One Police Plaza

New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X
JUAN VAZQUEZ,

Plaintiff

Index No.

VERIFIED COMPLAINT

- against -

**THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, P.O.
BRITTNEY SAXON (Shield No. 01707), and
POLICE OFFICER JANE DOE,**
Defendants.

-----X
Plaintiff, JUAN VAZQUEZ, by his attorney WESLEY MEAD, Esq., of THE MEAD LAW FIRM, P.C., attorneys of record for plaintiff, complaining of the Defendants, alleges the following upon information and belief:

PARTIES

1. At all times mentioned, Plaintiff JUAN VAZQUEZ, was a citizen of the United States and a resident of Queens County, City and State of New York.
2. At all times mentioned, Defendant THE CITY OF NEW YORK ("CITY") was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all relevant times hereinafter mentioned, the defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD") was and is an agency of the defendant, CITY.
4. That on and prior to September 4, 2016, and at all times hereinafter mentioned the defendant POLICE OFFICER BRITTNEY SAXON (Shield No. 01707), hereinafter referred to as "SAXON" was and is a police officer employed by the defendant NYPD, and all times herein was acting such capacity as the agent, servant and

employee of the CITY and NYPD.

5. That on and prior to September 4, 2016, and at all times hereinafter mentioned the defendant POLICE OFFICER JANE DOE (name to be fictitious as it is currently unknown) was and is a police officer employed by the defendant NYPD, and all times herein was acting such capacity as the agents, servants and employees of the CITY and NYPD.

6. Upon information and belief, at all times hereinafter mentioned, and on September 4, 2016, SAXON and JANE DOE were acting within the scope of their employment and under the direction of the CITY and NYPD, as their agents, servants and/or employees.

7. That on and prior to September 4, 2016, SAXON and DOE were hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

8. That on and prior to September 4, 2016, and all relevant times hereinafter, SAXON and DOE were acting pursuant to their training under the rules and regulations of the New York City Patrol Guidelines.

9. That on September 4, 2016, at approximately 3:10 p.m., Plaintiff JUAN VAZQUEZ was lawfully in the vicinity of 450 Tiffany Street, Bronx New York, in the County of Bronx, City and State of New York, and doing nothing illegal, improper or acting suspicious in any way.

10. That on September 4, 2016 in the vicinity of 450 Tiffany Street, Bronx, New York, County of Bronx, City and State of New York, SAXON and DOE, absent warrant to arrest, probable cause, reasonable cause or any legal justification, approached the Plaintiff for no reason, and based on fraud, perjury, and misrepresentation, summarily assaulted, battered and detained him in an excessive manner.

11. Upon information and belief, SAXON and DOE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing, and arresting Plaintiff JUAN VAZQUEZ and said actions were based on fraud, perjury and misrepresentation.

BACKGROUND

12. On or about September 4, 2016, P.O. BRITTNEY SAXON (hereinafter "SAXON") acting as an agent, servant and employee of Defendants CITY and POLICE, without just cause or provocation, intentionally and falsely accused Mr. Vazquez of having committed the crime of Assault in the Third Degree and Harassment in the Second Degree in violation of Penal Law § 120.00 (1) and 240.26 (1).

13. On or about September 4, 2016, Defendants, their agents, servants and/or employees, intentionally placed Mr. Vazquez under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

14. On or about September 4, 2016, a misdemeanor complaint under Docket Number 2016BX039012 was issued at the directive of Defendants, and a criminal action against Mr. Vazquez was commenced.

15. On or about September 7, 2016, Mr. Vazquez was arraigned at Lincoln Hospital as he was under medical care and he was released on his own recognizance.

16. On January 12, 2018, nearly sixteen (16) months after his false arrest, all the charges against Mr. Vazquez were dismissed on the motion of the District Attorney's office. This occurred approximately seven (7) months after the purported complainant on Mr. Vazquez's case had already pled guilty to a felony assault, on or about May 15, 2017, for assaulting Mr. Vazquez on the day of the occurrence herein.

17. As a result of being falsely arrested and detained, Mr. Vazquez suffered loss of liberty, mental anguish, emotional distress, physical pain and injury, loss of

professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear for his safety based on the false information provided by the defendants and because of defendants' utter failure to conduct even a cursory investigation of the facts and circumstances regarding the plaintiff's case.

PROCEDURAL POSTURE

18. On or about the February 22, 2018, this date being within ninety (90) days after the claim herein sued upon arose, plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by mailing via certified mail return receipt requested a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

19. More than thirty (30) days have elapsed since the aforesaid verified Notice of Claim was filed, and Defendant CITY has failed neglected and refused to pay or adjust the claim.

20. This action is commenced within one year and ninety days from the date the causes of action herein accrued, or within the time allowed by the law.

21. Defendants requested an oral examination pursuant to General Municipal Law §50-h and said request was complied with on or about May 22, 2018.

22. Plaintiff has duly complied with the condition precedents to the commencement of this action.

AS FOR A FIRST CAUSE OF ACTION: FALSE ARREST

(42 United State Code, Section 1983)

23. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs number "1" through "22" with the same force and effect as if fully set forth herein.

24. SAXON and DOE were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

25. At all times mentioned herein, SAXON and DOE were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

26. Plaintiff JUAN VAZQUEZ is and was at all times relevant herein, a citizen of the United States and a resident of Queens County in the State of New York and brings this cause of action pursuant to 42 United States Code, section 1983 and 42 United States Code, section 1988.

27. Plaintiff intends, upon being deemed the prevailing party in this action, to move this Court for reasonable attorneys' fee pursuant to Title 42 of the United States Code, section 1988.

28. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

29. On or about September 4, 2016 at approximately 3:10 p.m., Defendants SAXON, DOE and other armed police, while effectuating the seizure of the Plaintiff JUAN VAZQUEZ, did search, seize, assault and grab the person of Plaintiff without a court authorized arrest warrant. They did physically seize the Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause.

30. Defendants SAXON and DOE violated Plaintiff's right to be free from false arrest, right to be free from false imprisonment, right to be free from illegal search and seizure, right to be free from assault and battery, right to be free from malicious prosecution, right to procedural and substantive due process, right to equal protection under the law, as guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States, by unlawfully seizing Mr. Vazquez's person, confining him without justification or consent, intentionally and offensively touching his person and commencing and continuing criminal proceedings against him without probable cause and with actual malice.

31. The above actions of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process.
- g. The right to procedural and substantive due process.
- h. The right to equal protection under the law.

32. As a result of the acts and omissions of the Defendants which deprived Mr. Vazquez of his constitutional rights under the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States, Mr. Vazquez sustained multiple injuries, including loss of liberty, mental anguish, emotional distress, physical pain and injury, loss of professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear

for his safety, and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

AS AND FOR A SECOND CAUSE OF ACTION
SUPERVISOR LIABILITY PURSUANT TO 42 U.S.C. § 1983
IN VIOLATION OF THE FOURTH, FIFTH AND FOURTEENTH AMENDMENTS

33. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "32" with the same force and effect as if fully set forth herein.

34. Mr. Vazquez's rights have been violated under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution by the defendants who were supervisors of the officers who violated and abused plaintiff's rights.

35. These defendants, CITY and NYPD, who were supervisors, had actual and constructive knowledge of the illegal seizure, false arrest and malicious prosecution being committed by their subordinates against Mr. Vazquez.

36. The defendant supervisors did cause Mr. Vazquez harm by their gross negligence in managing their subordinates, by failing to remedy the patterns of false arrest and malicious prosecution and other constitutional violations the defendants committed after learning of them, and by creating a policy and custom under which unconstitutional practices occurred and were tolerated.

37. By reason of the unlawful seizure, detention, and malicious prosecution, Mr. Vazquez suffered mental anguish, emotional distress, physical pain and injury, loss of his right arm, professional opportunity, loss of income, legal expenses, loss of reputation, humiliation, indignities, embarrassment, and degradation and he was otherwise injured.

38. By reason of the aforesaid, Mr. Vazquez sustained multiple injuries including loss of liberty, mental anguish, emotional distress, physical pain and injury, loss professional opportunity, loss of income, loss of reputation, humiliation, indignities,

embarrassment, degradation, loss of enjoyment of life, intimidation and fear for his safety, and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

AS AND FOR A THIRD CAUSE OF ACTION:
42 U.S.C. § 1983 - MONELL CLAIM

39. Plaintiff repeats, reiterates, realleges each and every allegation contained in paragraphs "1" through "38" with the same force and effect as if fully set forth herein.

40. Mr. Vazquez's rights have been violated under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution by the defendant City of New York.

41. Defendants CITY and NYPD and unidentified Police Officers who were supervisors and final decision makers, as a matter of policy and practice, have acted with a callous, reckless and deliberate indifference to Mr. Vazquez's rights under the Constitution and the laws of the United States, in that they failed to adequately discipline, train, supervise or otherwise direct police officers in connection with fundamental and recurring constitutional and ethical duties.

42. Defendants City of New York, New York City Police Department and unidentified Police Officers who were supervisors and final decision makers, as a matter of policy and practice, have with deliberate indifference failed to properly sanction or discipline police officers, including the defendants in this case for violations of the constitutional rights of citizens, thereby causing defendants in this case to engage in unlawful conduct which did cause the plaintiff to be subjected to deprivations of his civil rights.

43. Defendants CITY, NYPD and unidentified Police Officers who were supervisors and final decision makers, as a matter of policy and practice, have with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers,

including defendants in this case, to engage in unlawful conduct.

44. Defendants CITY and NYPD and unidentified Police Officers who were supervisors and final decision makers, as a matter of policy and practice, have failed to train the defendants in understanding the rights of citizens.

45. Defendants CITY and NYPD and unidentified Police Officers who were supervisors and final decision makers, as a matter of policy and practice, failed to train the defendants regarding the proper criteria to properly conduct an investigation.

46. Defendants CITY, the NYPD and unidentified Police Officers who were supervisors and final decision makers, as a matter of policy and practice, have failed to train the defendants and insure that defendants understand proper comportment, are capable of maintaining appropriate control of their tempers, and are capable of behaving appropriately and properly when wielding the force of law enforcement authority.

47. Defendants CITY, NYPD and unidentified Police Officers who were supervisors and final decision makers, as a matter of policy and practice, have failed to train the defendants as to the existence and elements of the affirmative duty of a law enforcement officer to intervene to prevent violations of citizens' civil rights, which are preventable, from being perpetrated by a fellow officer in his or her presence.

48. By reason of the unlawful seizure, detention and malicious prosecution the plaintiff suffered mental anguish, emotional distress, physical pain and injury, loss of professional opportunity, loss of income, legal expenses, loss of reputation, humiliation, indignities, embarrassment, and degradation and he was otherwise injured.

49. By reason of the aforesaid, Mr. Vazquez sustained multiple injuries including loss of liberty, mental anguish, emotional distress, physical pain and injury, loss of professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear

for his safety, and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

AS AND FOR A FOURTH CAUSE OF ACTION:
42 U.S.C. § 1983 - FAILURE TO INTERVENE

50. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "49" with the same force and effect as if fully set forth herein.

51. The Plaintiff's rights have been violated under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution by the individual defendants.

52. There exists a duty for defendants to intervene to prevent the preventable violation of civil rights taking place in their presence when there is a reasonable opportunity to do so.

53. Such opportunity existed for the defendants in the instant case.

54. Defendants, by failing in their affirmative duty to intervene are responsible for the violations of the plaintiff's rights under Fourth, Fifth and Fourteenth Amendment.

55. By reason of the defendants' failure to intervene, Mr. Vazquez suffered mental anguish, emotional distress, physical pain and injury, loss of professional opportunity, loss of income, legal expenses, loss of reputation, humiliation, indignities, embarrassment, and degradation and he was otherwise injured.

56. By reason of the aforesaid, Mr. Vazquez has been damaged in an amount to be determined by a jury and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

57. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the Fourth, Fifth and Fourteenth amendments of the United State Constitution.

58. The direct and proximate result of Defendants' acts is that Mr. Vazquez

sustained multiple injuries including loss of liberty, mental anguish, emotional distress, physical pain and injury, loss of professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear for his safety, and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

59. Defendants, their agents, servants and employees, arrested and confined Mr. Vazquez, as described in paragraphs 1-17, and intended to confine Mr. Vazquez. Plaintiff was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

60. As a result of being falsely imprisoned by the Defendants, Mr. Vazquez sustained multiple injuries, including loss of liberty, mental anguish, emotional distress, physical pain and injury, loss of professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear for his safety.

AS AND FOR A FIFTH CAUSE OF ACTION:

(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "60" with the same force and effect as if fully set forth herein.

62. That the Defendants CITY and NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to SAXON and DOE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience,

skill and training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

63. As a result of the negligence of Defendants CITY and NYPD, Mr. Vazquez sustained multiple injuries, including loss of liberty, mental anguish, emotional distress, physical pain and injury, loss of professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear for his safety.

AS AND FOR A SIXTH CAUSE OF ACTION

(Negligent Supervision under the laws of the State of New York)

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "63" with the same force and effect as if fully set forth herein.

65. As a result of the negligence of the Defendants, Mr. Vazquez sustained multiple injuries, including loss of liberty, mental anguish, emotional distress, physical pain and injury, loss of his right arms, loss of professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear for his safety.

66. Defendant CITY, through its agents, servants and employees, had the responsibility for supervising, disciplining, evaluating and training SAXON, DOE, as well as all of the other NYPD officers involved in this matter.

67. Defendants CITY and NYPD have grossly failed to train and properly supervise its police officers, particularly the detectives and police officers involved herein, regarding the law of arrest, search and seizure.

68. Defendants CITY and NYPD were negligent by failing to implement a

policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

69. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.

70. Defendants CITY and NYPD had the responsibility for supervising, disciplining, evaluating and training the police officers involved herein, including SAXON and DOE.

71. Defendants CITY and NYPD were negligent in supervising, disciplining, evaluating and training the police officers involved herein, including SAXON and DOE.

72. As a result of the negligence of Defendants CITY and NYPD, Mr. Vazquez sustained multiple injuries, including loss of liberty, mental anguish, emotional distress, physical pain and injury, loss of professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear for his safety.

AS AND FOR A SIXTH CAUSE OF ACTION:
(Negligence under the laws of the State of New York)

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "72" with the same force and effect as if fully set forth herein.

74. Plaintiff's injuries herein were caused by the carelessness, recklessness, and negligence of the defendants and their employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

75. At all times hereinafter mentioned, the aforesaid false arrest, false

imprisonment, abuse of process and malicious prosecution were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

76. As a result of the negligence of the Defendants, Mr. Vazquez sustained multiple injuries, including loss of liberty, mental anguish, emotional distress, physical pain and injury, loss of professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear for his safety.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Respondent Superior liability under the laws of the State of New York)

77. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "77" with the same force and effect as if fully set forth herein.

78. Defendant CITY is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

AS AND FOR AN EIGHT CAUSE OF ACTION
(Abuse of Process under the laws of the State of New York)

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "78" with the same force and effect as if fully set forth herein.

80. In arresting the Plaintiff, SAXON and DOE were acting in their capacity as an agents, servants and employees of Defendant CITY, and SAXON and DOE were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

81. In arresting Mr. Vazquez, SAXON and DOE were acting in their capacity as the agents, servants and employees of Defendant CITY, and sought either a detriment

to Mr. Vazquez or a collateral advantage to the Defendants outside of the legitimate ends of making an arrest.

82. As a result of the abuse of process by the Defendants, Mr. Vazquez sustained multiple injuries, including loss of liberty, mental anguish, emotional distress, physical pain and injury, loss of professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear for his safety.

AS AND FOR A NINTH CAUSE OF ACTION:
(Malicious Prosecution under the laws of the State of New York)

83. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "82" with the same force and effect as if fully set forth herein.

84. At all times mentioned herein, defendants CITY and NYPD employed SAXON and DOE as police officers and the named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

85. Defendants and each of them, deliberately and maliciously prosecuted the Plaintiff, JUAN VAZQUEZ, an innocent man, from September 4, 2016 up to and including January 12, 2018, without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Supreme Court of the City of New York, Bronx County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

86. Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's

Office to induce prosecution of Plaintiff.

87. The commencement of these criminal proceedings under Docket No. 2016BX039012 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

88. In the instant case, the proceedings against Mr. Vazquez continued despite the fact that purported complainant in the case, Leon Shaw, was arrested and charged with a felony assault under Indictment 0250-2017. Moreover, the proceedings against Mr. Vazquez continued for approximately seven (7) months even after the purported complainant, Leon Shaw, pled guilty on May 15, 2017 to assaulting Mr. Vazquez. The District Attorney's office moved to dismiss the case against Mr. Vazquez on or about January 12, 2018.

89. As a result of being maliciously prosecuted by the Defendants, Mr. Vazquez was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution as well as emotional distress, physical pain and injury, loss of professional opportunity, loss of income, loss of reputation, humiliation, indignities, embarrassment, degradation, loss of enjoyment of life, intimidation and fear for his safety.

90. That by reason of the foregoing, Plaintiff JUAN VAZQUEZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

WHEREFORE, Plaintiff JUAN VAZQUEZ demands judgment against the defendants on the First Cause to Action through the Ninth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: Astoria, New York
November 17, 2018

Yours, etc.,



WESLEY MEAD, ESQ.

Attorney for Plaintiff

JUAN VASQUEZ

The Mead Law Firm, P.C.

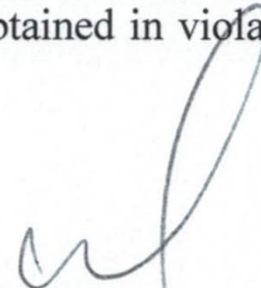
20-77 Steinway Street, Suite SL

Astoria, NY 11105

Tel. 866-306-5547

CERTIFICATION

I, WESLEY MEAD, ESQ., certify, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).



WESLEY MEAD, ESQ.

WESLEY MEAD, ESQ.

Attorney for Plaintiff

JUAN VASQUEZ

The Mead Law Firm, P.C.

20-77 Steinway Street, Suite SL

Astoria, NY 11105

Tel. 866-306-5547

CERTIFICATION

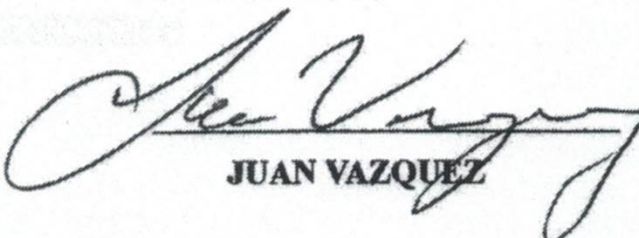
I, WESLEY MEAD, ESQ., certify, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).

WESLEY MEAD, ESQ.**VERIFICATION**

STATE OF NEW YORK }
 } ss:
 COUNTY OF QUEENS }

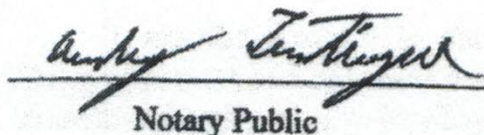
JUAN VAQUEZ, being duly sworn, deposes and says:

I am the Plaintiff in the above-entitled action. I have read the foregoing Complaint and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters, I believe them to be true.


JUAN VAZQUEZ

Subscribed and sworn to before me
 on this 17 day of November, 2018:

ANDY LANTIGUA
 Notary Public, State of New York
 Reg. No. 01LA6265915
 Qualified in Queens County
 Commission Expires July 23, 2020


 Notary Public